



PART D - BOARDING HOUSES

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D1 Land to which Part D applies

Part D applies to development for the purpose of boarding houses.

D2 Council approval process for boarding houses

The *State Environmental Planning Policy (Housing) 2021* (Housing SEPP) was introduced on 26 November 2021. It provides for the development of boarding houses in specific residential and commercial zones. In the City of Canada Bay LGA, these zones include R1, R3, R4, E1, and MU1.

Note: The Housing SEPP includes provision for development for the purposes of a boarding house within Zone R2 Low Density Residential. A boarding house must not be carried out on land in Zone R2 Low Density Residential or an equivalent land use zone unless—

- a) for land in the Greater Sydney region—the land is within an accessible area, or
- b) otherwise—all or part of the boarding house is within 400m walking distance of land in Zone E1 Local Centre, Zone MU1 Mixed Use, Zone B2 Local Centre or Zone B4 Mixed Use, or an equivalent land use zone.

The term 'boarding house' relates to a building that:

- Is wholly or partly let in lodgings;
- Provides lodgers with a principal place of residence for three months or more;
- May have shared facilities, such as a communal living room, bathroom, kitchen or laundry;
- Has rooms, some or all of which may have private kitchen and bathroom facilities, that accommodate one or more lodgers.

However, the definition does not include backpackers' accommodation, group homes, serviced apartments, seniors housing or hotel or motel accommodation.

The Housing SEPP also provides floor space incentives to encourage the development of new boarding houses and sets clear standards for their design and construction.

Objectives

- O1. To ensure development has bulk, scale and intensity that is compatible with the character of the area.
- O2. To provide a level of amenity to ensure acceptable living standards.
- O3. To ensure rooms provided with a kitchens, bathrooms and associated appliances are adequately self-contained, providing a good level of amenity without compromising required living area.
- O4. To ensure that boarding house residents have reasonable access to retail and commercial services, community facilities, recreational and entertainment facilities, employment opportunities and public transport services.

These controls support and must be read in conjunction with the Housing SEPP as it applies to Boarding Houses.

Controls

C1.	Development is supported by a Streetscape Character Analysis.
C2.	Development is compatible with Part F2 Design Quality of the DCP.
C3.	Development is supported by a Social Impact Assessment if the development is within 200 metres of another Boarding House.
C4.	When a development site contains an existing residential flat building or an existing boarding house, the Statement of Environmental Effects is to include an assessment against Chapter 2 Part 3 of the Housing SEPP.
C5.	Boarding house development is consistent with setbacks required under this DCP for permissible development within respective land use zones.

Controls

C6.	Private kitchen facilities must comprise of a cooking appliance, a sink, space for a refrigerator, cupboard/shelve fixtures and a bench top for the preparation of food with a minimum area of 1m ² ; plus a 1 metre strip of circulation floor space in front of and along the full length of any kitchen fixtures and refrigerator space.
C7.	Private bathrooms must comprise of a hand basin, toilet; and a shower.
C8.	Private laundry facilities must include space for clothes washer/dryer appliance/s and a laundry tub, plus a 0.9 metre strip of circulation floor space in front of and along the length of any laundry fixtures and appliance space.
C9.	The gross floor area calculation, for the purposes of ensuring the maximum size of 25 sqm for a boarding room is not exceeded, excludes the following areas: i) Private kitchen facilities; ii) Private bathroom facilities; Private laundry facilities, which must include space for clothes washer/dryer appliance/s and a laundry tub, plus a 0.9 metre strip of circulation floor space in front of and along the length of any laundry fixtures and appliance space.
C10.	The floor area calculation, for the purposes of determining sufficient living space for either a single or double resident boarding room, must exclude any area used for the purposes of private kitchen, bathroom, or laundry facility, as described in this section, plus any area required to access those areas.

Requirements for Boarding House Rooms and Facilities

Control	Requirement
Min. area required for a single occupant boarding room	12m ² Gross Floor Area*
Min. area required for a double occupant boarding room	16m ² Gross Floor Area*
Max. boarding room size	25m ² Gross Floor Area*
Max. occupancy of any boarding room	2 occupants

** Calculation of Gross Floor Area (GFA) for the purposes of calculating boarding room occupancy numbers and maximum size of boarding rooms excludes private kitchens, bathrooms, and any areas required to access them. The area of a kitchen to be excluded in the calculation shall include floor area with a 1 metre width, adjacent to and for the length of the kitchen bench/cupboards and any space required for a refrigerator or appliance.*

Controls

C11.	Roof tops are not to be used as trafficable roof-top terrace areas to meet communal open space requirements.
C12.	The following on-site vehicular and bicycle parking shall be provided: i) Minimum car and motorcycle parking as per Housing SEPP ii) Bicycle parking storage – 1 space per lodger. Provision for EV vehicular and bicycle charging.
C13.	A Plan of Management must accompany a development application for any new boarding house or intensification of an existing boarding house. The approved Plan of Management will form part of any development consent.

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